

Dr. Akshay S/O. Navalkishor Lakhotiya vs Dr. Arti W/O. Akshay Lakhotiya on 31 March, 2016

Author: Prasanna B. Varale

Bench: Prasanna B. Varale

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Jg.wp4446

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

: NAGPUR BENCH : NAGPUR.

WRIT PETITION NO. 4446 OF 2015

Dr. Akshay S/o Navalkishor Lakhotiya

Aged 30 years, Occ. : Doctor,
R/o "Navkiran", 41, Toshniwal Layout,
Near National Highway No. 6, Akola,
Tehsil & District Akola.

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// Versus //

Dr. Arti W/o Akshay Lakhotiya
Aged about 31 years, Occ. : Doctor,
R/o. C/o. Subhash Heda, Advocate,

"Navrang Park" Apartment,
Near Navrang Society,
New Radhakisan Plot, Akola,
Tehsil & District Akola.

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Shri V. S. Kukday, Advocate for the petitioner
Shri R. V. Shiralkar, Advocate for the respondent

CORAM : PRASANNA B. VARALE, J.
DATE : 31-3-2016.

ORAL JUDGMENT

Heard Shri Kukday, learned counsel for the petitioner and Shri Shiralkar, learned counsel for the respondent.

2. Rule. Rule made returnable forthwith.

3. By the present petition, the petitioner challenges the order passed by the learned Judge, Family Court, Akola dated 9-7-2015 allowing the application partly seeking production of the 2 Jg.wp4446.15.odt documents.

4. Few facts are referred to giving the backdrop of the controversy raised in the petition.

The petitioner and the respondent, both are well qualified persons. The petitioner and the respondent, after completing their education in the medicine field, started practice as Doctors. The marriage between the petitioner and the respondent was solemnized on 1-2-2013. It seems that within a short span of the matrimonial life, the petitioner and the respondent were unable to go along with each other to keep the matrimonial tie intact, the same resulted in filing the petition by the petitioner before the Family Court under Section 12 read with Section 13(i-a)(v) of the Hindu Marriage Act, 1955. On 15-12-2014, evidence of the petitioner was recorded. On 19-3-2015, the petitioner examined his witness and closed his evidence. On 2-4-2015, evidence of the respondent was recorded and the evidence was completed on 10-6-2015. An application was filed before the learned Judge, Family Court seeking permission to file documents as per the list attached. The list included 121 documents. Loosely, 50% of the documents are the photographs and the rest of the documents are copy of bills, vouchers etc. The 3 Jg.wp4446.15.odt learned Judge, Family Court by order dated 9-7-2015 allowed the application partly. The learned Judge permitted to place on record the documents at Serial No. 2 to 10, 22 to 24, 40 to 51, 53 to 55, 58, 59 and 60 to 72 which are photographs and certain bills whereas rejected the prayer in respect of the documents which are mostly the certified copies of sale deed etc. and referred to as Sr. No. 77, 78, 79 to 81, 82 to 84, 85, 87, 88 to 90, 96, 97, 99, 101, 102, 103, 105, 106, 108, 109, 111 and 112 by observing that these documents are completely irrelevant to the matter in hand.

5. Shri Kukday, learned counsel for the petitioner vehemently submitted that the learned Judge committed a grave error in allowing the application partly. The first limb of submissions of Shri Kukday, learned counsel was the application was moved at the instance of the father of the respondent who was for some time representing the respondent as a lawyer and on 15-6-2015 withdrew his power from the matter as a counsel for the respondent. On the very day, i.e. on 15-6-2015, the application was filed seeking permission to file documents at the instance of the father of the respondent changing his stance in the application as a witness for the respondent. Shri Kukday, learned counsel then submitted that the 4 Jg.wp4446.15.odt learned Judge though in clear words observed that there was absolutely no reason put forward in the application seeking production of the documents and as majority of these documents were in the custody of the respondent's witness prior to filing of the written statement. Instead of these observation, the learned Judge permitted the documents to place on record only on the ground that the petitioner has a chance to cross-examine the respondent's witness on the said documents. Shri Kukday, learned counsel then submitted that in view of the provisions of Order VIII Rule 1 of the Code of Civil Procedure, documents can be placed on record by the defendant with leave of the Court. It is the submission of Shri Kukday, learned counsel that if though not admitting but assuming that if it was an attempt through the respondent, then the Court could have proceeded on that application on that backdrop, but the learned Judge grossly erred in allowing the application partly thereby permitting the documents to place on record at the instance of the witness of the respondent. Shri Kukday then submitted that such a course adopted by the learned Judge, Family Court is neither acceptable nor sustainable. Shri Kukday, learned counsel thus, on these grounds prayed for setting aside the order passed by the 5 Jg.wp4446.15.odt learned Judge, Family Court impugned in the petition.

6. Per contra, Shri Shiralkar, learned counsel for the respondent submitted that no error is committed by the learned Judge, Family Court in arriving at the conclusion. Shri Shiralkar, learned counsel submitted that it does not lie in the mouth of the petitioner to challenge the order passed by the learned Judge, Family Court when the petitioner himself had approached the learned Judge, Family Court seeking permission to file the documents on record and the learned Judge, Family Court resorted to the provisions of Section 14 of the Family Courts Act, 1984 and allowed the application of the petitioner. Shri Shiralkar, learned counsel vehemently submitted that the learned Judge, Family Court, in view of Section 14 of the Family Courts Act is entitled to accept and receive any report, statement and document as evidence if in the opinion of the learned Judge, Family Court it assist to deal effectively with the dispute. Shri Shiralkar, learned counsel submitted that as the learned Judge, Family Court thought it fit that the documents may assist the Court to appreciate and decide the dispute, the learned Judge permitted the documents to be placed on record and allowed the application partly.

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7. On hearing the learned counsel at length and on going through the material placed on record as well as the relevant provisions referred to by the parties, in my opinion, the order passed by the learned Judge, Family Court is unsustainable. The very objection raised by Shri Kukday, learned counsel for the petitioner to the approach of the applicant needs consideration. It is not in dispute

that the father of the respondent was representing her as a counsel for some time i.e. till 15-6-2015. On the very day, he withdrew himself from the matter as the counsel and presented application before the learned Judge, Family Court as a witness. It would be interesting to refer to the said application. A copy of the same is placed on record at Annexure - 3. The application starts with the words, "the respondent's witness wants to file some documents on record in support of his evidence". The application concludes with signature of the counsel for the respondent. There is absolutely nothing in the application, lease to say, any reason prompting the witness of the respondent to file the said application seeking permission to place documents on record. It is interesting to note that along with application, list of 121 documents is submitted.

These documents include the photographs in the marriage ceremony, 7 Jg.wp4446.15.odt the photographs of presenting gifts articles by the relatives, invitation cards printed at the instance of the family, the bills of payment towards purchase of various articles including jewellery, ornaments, the bills of service provider agency like decoration, flowers etc. There is a considerable merit in the submission of Shri Kukday that when the learned Judge in clear words observed that no reason was coming forward in the application seeking the permission to place documents on record, as well, the undisputed fact that the majority of the documents were in the custody of the respondent's witness prior to filing of the written statement, in spite of observing these facts, the learned Judge allowed the application assigning no reason to show that how the learned Judge thought it fit that these documents would assist the Court in appreciation or in decision of the matter as per the provisions of Section 14 of the Family Courts Act. The only reason assigned by the learned Judge is the petitioner has a chance to cross-examine the respondent's witness. There is absolutely no explanation either in the application or in the context of the present petition on the aspect that how the applicant who claims to be the respondent's witness was filing the application seeking permission to file documents can further the 8 Jg.wp4446.15.odt cause of the respondent for stepping in shoes of the respondent.

8. It is also interesting to note the manner in which the application was filed. At the cost of repetition, the application was opening with the words that the respondent's witness wants to file some documents on record in support of his evidence and concluded that the application was moved by the respondent. There is nothing on record to show how the course adopted by the respondent's witness was permissible.

9. There is also merit in the submission of Shri Kukday, learned counsel that if assuming, it was a request for placing the documents through the respondent, then there is a scope to say that the learned Judge to achieve the object of better appreciation and decision permitted the documents to place on record. In the present case, the application is not by the respondent but it is moved by the respondent's witness. There is also merit in the submission that all these documents which were sought to be placed on record at a later stage were the documents in the custody of the respondent and no reason is assigned to state what prevented the respondent to place these documents on record. Considering all these aspects, in my opinion, the learned counsel for the petitioner has made out the 9 Jg.wp4446.15.odt case. The order impugned in the petition is unsustainable. In the result, the writ petition is allowed. The order passed by the learned Judge, Family Court impugned in the petition is quashed and set aside.

10. At this stage, Shri Shiralkar, learned counsel for the respondent submits that as the parties are well qualified and the proceeding is pending for divorce since the year 2014, the learned Judge, Family Court, Akola be directed to decide the proceeding within stipulated time frame. I am afraid that fixing such a time frame would be appropriate considering the fact that both the parties are well qualified and practicing medical professional, I hope and trust that the learned Judge, Family Court, Akola would decide the proceeding as early as possible.

JUDGE wasnik